

HOUSE No. 5258

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 18, 2026.

The committee on Economic Development and Emerging Technologies, to whom was referred the petition (accompanied by bill, House, No. 4037) of Adam J. Scanlon relative to problem gambling, reports recommending that the accompanying bill (House, No. 5258) ought to pass.

For the committee,

CAROLE A. FIOLA.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to problem gambling.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Said section 24 of said chapter 10, as so appearing, is hereby further
2 amended by adding the following subsection:-

3 (i) The commission shall include the standardized disclaimer, established pursuant to
4 subsection (z) of section 3 of chapter 23K, in all its advertisements for lottery products.

5 SECTION 2. Chapter 12 of the General Laws is hereby amended by inserting after
6 section 11M1/2 the following section:-

7 Section 11M3/4. (a) The attorney general shall establish a list of self-excluded persons
8 from fantasy contests, established pursuant to section 11M1/2. A person may request such
9 person's name to be placed on the list of self-excluded persons by filing a statement with the
10 attorney general acknowledging that the person is a problem gambler and by agreeing that,
11 during any period of voluntary exclusion, the person shall not collect any winnings or recover
12 any losses resulting from any fantasy contests, established pursuant to said section 11M1/2. The
13 attorney general shall adopt further regulations for the self-excluded persons list including

procedures for placement, removal and transmittal of such list to persons or entities that offer fantasy contests, established pursuant to said section 11M1/2. The attorney general may fine a person or entity that offers fantasy contests, established pursuant to said section 11M1/2, if the person or entity that offers fantasy contests knowingly or recklessly fails to exclude or eject from its premises any person placed on the list of self-excluded persons.

(b) Persons or entities that offer fantasy contests, established pursuant to section 11M1/2, shall not market to persons on any excluded persons list and shall deny access to complimentary, check cashing privileges, club programs and other similar benefits to persons on the self-excluded persons list. Notwithstanding any other general or special law to the contrary, the self-excluded persons list shall not be open to public inspection. Nothing in this section, however, shall prohibit a person or entity that offers fantasy contests, established pursuant to said section 11M1/2, from disclosing the identity of persons on the self-excluded persons list under this section to affiliated persons or entities that offer fantasy contests in this commonwealth or other jurisdictions for the limited purpose of assisting in the proper administration of responsible gaming programs operated by affiliated persons or entities that offer fantasy contests, established pursuant to said section 11M1/2.

(c) A person who is prohibited from participating in fantasy contests, established pursuant to section 11M1/2, shall not collect any winnings or recover losses arising as a result of prohibited fantasy contest winnings obtained by a person who is prohibited from fantasy contests, and such winnings shall be deposited into the Public Health Trust Fund, established pursuant to section 58 of chapter 23K.

(d) The attorney general shall further allow an individual to voluntarily place themselves on the list of self-excluded persons established by the Massachusetts gaming commission pursuant to subsection (f) of section 45 of chapter 23K, and on the list of self-excluded persons established by the Massachusetts gaming commission pursuant to paragraph (2) of subsection (c) of section 13 of chapter 23N, at the same time and in the same manner in which they request to be added to the list of self-excluded list of persons, established pursuant to this section.

(e) The attorney general shall establish regulations, pursuant to chapter 30A, and procedures to implement this section.

(f) Persons or entities that offer fantasy contests, established pursuant to section 11M1/2, shall not engage in marketing or advertising that: (i) markets to persons on any excluded persons list, established pursuant to this section, in any form, including but not limited to marketing by mail, by app notifications, by digital ads or by ads contracted to display in other companies' advertisements; provided, that a person or entity that offers fantasy contests, established pursuant to section 11M1/2, shall use all technological means available, including but not limited to microtargeting via cookies, Internet Protocol addresses and other digital fingerprints, to prevent their ads from being served to individuals on any excluded persons list, established pursuant to this section; provided further, that the attorney general shall promulgate regulations, pursuant to chapter 30A, including penalties for noncompliance, for the implementation of this section; (ii) is deemed by the attorney general to appeal to a person less than 21 years of age; or (iii) occurs via means of television, radio, internet, billboard or print publication unless at least 85 per cent of the audience is reasonably expected to be 21 years of age or older, as determined by reliable, up-to-date audience composition data. The penalty for an infraction of this subsection shall be determined by the attorney general, pursuant to its power to promulgate regulations for the

implementation, administration and enforcement of this chapter, in accordance with what the commission deems necessary to achieve compliance with this subsection.

(g) Persons or entities that offer fantasy contests, established pursuant to section 11M1/2, shall include the standardized disclaimer, established pursuant to subsection (z) of section 3 of chapter 23K, in all advertising and marketing for all such fantasy contests.

SECTION 3. Section 3 of chapter 23K of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following subsection:-

(z) The commission, in consultation with the department of public health's office of problem gambling services, the state lottery commission, established pursuant to section 23 of chapter 10 and the attorney general, shall establish a single standardized disclaimer that: (i) warns of the risks of gambling, sports betting and playing the lottery; (ii) contains a single phone number for the MA Gambling Helpline; and (iii) provides means to locate other resources made available by the state to help with problem gambling and gambling addiction. The commission shall promulgate regulations, pursuant to chapter 30A, to require its licensees and its licensees' contractors to use the standardized disclaimer in all advertising.

SECTION 4. Said chapter 23K is hereby amended by striking out section 29 and inserting in place thereof the following section:-

Section 29. (a) A gaming establishment offering a cashless wagering system shall allow individuals to monitor and impose betting limits and loss limits on their cashless wagering. The gaming establishment shall allow individuals to set betting limits and loss limits on their cashless

wagering including, but not limited to, per bet limits, hourly limits, daily limits, weekly limits and monthly limits. An individual may lower limits and increase limits; provided, however, that the individual shall not increase betting limits more than once in a 24-hour period.

(b) The gaming establishment shall issue to each patron who has been issued a rewards card or who participates in a cashless wagering system by the gaming establishment a monthly statement, mailed to the patron at the patron's physical mailing address, which shall include the patron's total bets, wins and losses; provided, however, that a patron shall be given the opportunity to decline receiving a monthly statement at the time the rewards card is issued or during initial participation in a cashless wagering system; provided further, that a patron may later opt out of receiving monthly statements by providing a written request to cease monthly statements to the gaming establishment.

(c) The gaming establishment shall issue to each patron who has been issued a rewards card or who participates in a cashless wagering system by the gaming establishment an electronic daily statement, sent to their email address collected when the rewards card was issued or when the player was enrolled in cashless wagering system, and sent to their smartphone via notification from the gaming establishment's app if downloaded by the patron, with the default setting of the app set to allow this notification; this electronic statement shall include the patron's total bets, wins and losses; provided however, that a patron shall be given the opportunity to decline to receive the electronic daily statement by email or turn off the notification at the time the rewards card is issued or during initial participation in a cashless wagering system; provided further, that a patron may later opt out of receiving the electronic weekly statement by email through use of a link to unsubscribe from the statement in the email, and that a patron may also later turn off the daily statement notification from the gaming establishment's app.

(d) A gaming licensee who has implemented such a program or system shall annually report to the commission the amount of money spent and lost by patrons who have been issued a rewards card or who participated in a cashless wagering system, aggregated by zip code. Activity under this section shall be monitored by the commission. Individuals on the list of excluded persons shall not be permitted to participate in a cashless wagering system.

(e) A gaming establishment shall ask each patron who has been issued a rewards card or who participates in a cashless wagering system by the gaming establishment at the time they are issued the rewards card or enrolled in the cashless wagering system to set a spending limit for a daily, weekly or monthly basis and enroll in a play management program approved by the commission, including but not limited to Play-My-Way, or to opt-out of such a play management program.

(f) A gaming establishment shall issue to each patron who has been issued a rewards card or who participates in a cashless wagering system by the gaming establishment a hard, paper copy or a digital copy of a brochure that contains all information and resources made available by the state and the commission to help with problem gambling, including but not limited to Gamesense, PlayMyWay, and Voluntary Self-Exclusion.

SECTION 5. Subsection (f) of section 45 of said chapter 23K, as appearing in the 2022 Official Edition, is hereby amended by inserting after the third sentence the following 2 sentences:- The commission shall allow any individual to place themselves on the list of self-excluded persons established by the attorney general pursuant to section 11M3/4 of chapter 12 at the same time and in the same manner in which they request to be added to the list of self-

excluded list of persons, established pursuant to this section. The commission shall provide for an online method and a phone method, in addition to any other method it finds reasonable and necessary, for persons to place themselves on the list of self-excluded persons.

SECTION 6. Said section 45 of said chapter 23K, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Gaming establishments shall not market to persons on any excluded persons list, established pursuant to this section, in any form, including but not limited to marketing by mail, by app notifications, by digital ads or by ads contracted to display in other companies' advertisements. Gaming establishments shall use all technological means available, including but not limited to microtargeting via cookies, Internet Protocol addresses and other digital fingerprints, to prevent their ads from being served to individuals on any excluded persons list, established pursuant to this section. Gaming establishments shall deny access to complimentaries, check cashing privileges, club programs and other similar benefits to persons on the self-excluded persons list. The Massachusetts gaming commission shall promulgate regulations, pursuant to chapter 30A, including penalties for noncompliance, for the implementation of this section.

SECTION 7. Section 58 of said chapter 23K, as so appearing, is hereby amended by adding the following sentence:- Annually, the department of public health shall submit to the speaker of the house, the president of the senate, the joint committee on public health and the joint committee on economic development and emerging technologies a report on its treatment programs and advertising funded by the fund, including but not limited to: (i) names and descriptions of the treatment programs funded by the fund and the amounts they receive; (ii) the

number of individuals served by each treatment program funded by the fund, including whether they are new clients or continuing clients in the programs; and (iii) demographic information of those served by treatment programs funded by the fund, including but not limited to the variables of sex, age, race, ethnicity, income, education and geography. This report shall also include a summary of advertising expenditure, which shall include but not be limited: (i) the number of completed advertising campaigns; (ii) mediums used for advertising; (iii) the content of advertisements; (iv) the targeted demographics; and (v) available data related to the number of people reached.

SECTION 8. Said chapter 23K is hereby amended by adding the following section:-

Section 72. (a) A licensee under chapter 23K or chapter 23N shall not engage in advertising, marketing or branding, or enter into contracts to create brand sponsorships or celebrity endorsements, that are deemed by the commission to appeal to a person less than 21 years of age. A licensee under chapter 23K or chapter 23N shall not engage in advertising, marketing and branding by means of television, radio, internet, billboard or print publication unless at least 85 per cent of the audience is reasonably expected to be 21 years of age or older, as determined by reliable, up-to-date audience composition data. The penalty for an infraction of this subsection shall be determined by the commission, pursuant to its power to promulgate regulations for the implementation, administration and enforcement of this chapter, in accordance with what the commission deems necessary to achieve compliance with this subsection.

SECTION 9. Said chapter 23K is hereby amended by adding the following section:-

Section 73. Notwithstanding any general or special law or rule or regulation to the contrary, a gaming establishment shall supply the Massachusetts gaming commission with customer tracking data collected or generated by loyalty programs, player tracking software, player card systems, online gambling transactions or any other information system. The commission shall contract with an experienced nonprofit research entity to develop an anonymizing system that automatically removes from the data: (a) personally identifying information, including player name, street address, bank or credit information and the last 4 digits of a player's zip code, in compliance with section 2 of chapter 93H of the General Laws; and (b) game identifying information, including game name and device manufacturing company, in protection of corporate intellectual property. The data shall retain information on player characteristics including, but not limited to, gender, age and region of residence, player behavior including, but not limited to, frequency of play, length of play, speed of play, denomination of play, amounts wagered and, if applicable, number of lines or hands played and characteristics of games played including, but not limited to, reel configuration, return-to-player or RTP, volatility index and denomination. The commission shall convey the anonymized data to a research facility which shall make the data available to qualified researchers for the purposes of: (1) conducting analyses that improve understanding of how gambling addiction develops and progresses; (2) developing evidence-based harm minimization strategies; and (3) developing evidence-based systems to monitor, detect and intervene in high-risk gambling. The commission shall request reports on researcher analyses of the behavioral data, which could provide informed recommendations to the general court relative to more effective regulation of gambling operations. The commission may directly initiate studies assessing the effectiveness of any

specific measures, programs or interventions which the commonwealth has implemented in gaming operations, and which might be illuminated through the behavioral data in question.

SECTION 10. Section 4 of chapter 23N of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 22, the word “and”.

SECTION 11. Subsection (d) of said section 4 of said chapter 23N, as so appearing, is hereby further amended by adding the following paragraph:-

(4) (i) Notwithstanding any general or special law or rule or regulation to the contrary, a sports wagering operator shall supply the commission with customer tracking data collected or generated by loyalty programs, player tracking software, player card systems, online gambling transactions or any other information system. Not later than June 30, 2027 or six months after the bill takes effect, whichever is sooner, the commission shall contract with an experienced nonprofit research entity to develop an anonymizing system that automatically removes from the data: (A) personally identifying information, including player name, street address, bank or credit information and the last 4 digits of a player’s ZIP+4 code, in compliance with section 2 of chapter 93H; and (B) game identifying information, including game name and device manufacturing company, in protection of corporate intellectual property. The data shall retain information on player characteristics including, but not limited to, gender, age and region of residence, player behavior including, but not limited to, frequency of play, length of play, speed of play, denomination of play, amounts wagered and, if applicable, number of lines or hands played and characteristics of games played including, but not limited to, reel configuration, return-to-player or RTP, volatility index and denomination. The commission shall convey the anonymized data to a research facility, which shall make the data available to qualified

researchers for the purposes of: (1) conducting analyses that improve understanding of how gambling addiction develops and progresses; (2) developing evidence-based harm minimization strategies; and (3) developing evidence-based systems to monitor, detect and intervene in high-risk gambling. The commission shall request reports on research analyses of the behavioral data, which could provide informed recommendation to the general court relative to more effective regulation of gambling operations. The commission may directly initiate studies assessing the effectiveness of any specific measures, programs or interventions that the commonwealth has implemented in gaming operations and which might be illuminated through the behavioral data in question.

(ii) The commission shall make a concerted, good faith effort to implement such evidence-based harm minimization strategies and evidence-based systems to monitor, detect and intervene in high-risk gambling, and to act on the recommendations made in reports and studies produced pursuant to this section. The commission shall also deliver all such reports, studies and recommendations to the joint committee on economic development and emerging technologies.

SECTION 12. Subsection (d) of Section 4 of chapter 23N is hereby further amended by inserting after paragraph (4) the following subsection:- (5) The commission shall promulgate regulations to require operators to either digitally or physically provide a responsible gaming module to patrons placing wagers that shall include but not be limited to: (i) key definitions related to sports wagering; (ii) the risks associated with gambling; (iii) signs of problem gambling; (iv) myths of gambling; and (v) problem gambling resources available and where to find them. The commission shall work with the Department of Public Health Office of Problem Gambling to promulgate said regulations.

SECTION 13. Section 11 of said chapter 23N is hereby amended by inserting, after the word “owners” in line 5, the following words:-“agents, promoters”.

SECTION 14. Paragraph (2) of subsection (e) of section 13 of said chapter 23N, as so appearing, is hereby amended by inserting after the second sentence the following sentence:- The commission shall provide for an online method and a phone method, in addition to any other method it finds reasonable and necessary, for persons to place themselves on the list of self-excluded persons.

SECTION 15. Said subsection (e) of said section 13 of said chapter 23N, as so appearing, is hereby further amended by adding the following paragraph:-

(4) A sports wagering operator or qualified gaming entity shall not market to persons on any excluded persons list in any form, including but not limited to marketing by mail, by app notifications, by digital ads or by ads contracted to display in other companies’ advertisements. A sports wagering operator or qualified gaming entity shall use all technological means available, including but not limited to microtargeting via cookies, Internet Protocol addresses and other digital fingerprints, to prevent their ads from being served to individuals on any excluded persons list, established pursuant to this section. The commission shall promulgate regulations, pursuant to chapter 30A, including penalties for noncompliance, for the implementation of this section.

SECTION 16. Section 16 of said chapter 23N, as so appearing, is hereby amended by adding the following subsection:-

(j) To further effectuate the purposes of this chapter with respect to the investigation and enforcement of sports wagering operators and qualified gaming entities, the investigations and

255 enforcement bureau in the commission may obtain or provide pertinent information regarding
256 applicants or licensees from or to law enforcement entities or gaming authorities or sports
257 wagering regulatory authorities and other domestic, federal or foreign jurisdictions, including the
258 Federal Bureau of Investigation, and may transmit such information to each other electronically.

259 SECTION 17. Chapter 23N is hereby amended by inserting, after section 20, the
260 following section:-

261 Section 20A. The commission shall conduct a study into the feasibility of advertising
262 restrictions for sports wagering in the commonwealth. The study by the commission shall
263 include, but not be limited to: (i) an analysis of the feasibility of stricter sports wagering
264 advertising restrictions; (ii) the creation of a definition for unfair or deceptive marketing in sports
265 advertising; (iii) the establishment of a sports wagering advertising complaint helpline and
266 database to report unfair or deceptive marketing practices; (iv) an identification of any
267 advertising regulatory gaps; (v) an analysis of the feasibility of a whistle to whistle ban for sports
268 wagering advertisements; (vi) an analysis of any first amendment or other legal issues with
269 sports wagering advertising restrictions; and (vii) the assessment of penalties for violations of
270 sports wagering advertisement regulations. As part of the study, the commission shall consult
271 sports wagering operators; media and advertising platforms; sports leagues, teams, and venues;
272 advertising and marketing intermediaries; regulators and government entities; and responsible
273 gambling and public health experts. The commission shall report its findings and submit any
274 recommendations to the clerks of the house and senate, the house and senate committees on ways
275 and means, the joint committee on consumer protection and professional licensure and the joint
276 committee on economic development and emerging technologies no later than December 31,
277 2027.

SECTION 18. Section 23 of said chapter 23N is hereby amended by inserting, after the word “gambling”, in line 15 the following words:-“and suicide attempts, suicides, and self-harm among gamblers”.

SECTION 19. Section 32 of chapter 32A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in line 16 by inserting after the word “screening,” the following:-“including questions relating to gambling habits and frequency,”

SECTION 20. Section 10Q of chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in line 16 by inserting after the word “screening”, the following:-“including questions relating to gambling habits and frequency”.

SECTION 21. SECTION 20. Section 47TT of chapter 175 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in line 17 by inserting after the word “screening,” the following:-“including questions relating to gambling habits and frequency,”

SECTION 22. Section 4MM of chapter 176G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended in line 17 by inserting after the word “screening”, the following:-“including questions relating to gambling habits and frequency,”

SECTION 23. There is hereby established a special commission to consist of 1 member of the senate to be appointed by the president of the senate, who shall serve as co-chair, 1 member of the house of representatives to be appointed by the speaker of the house of representatives, who shall serve as co-chair, the commissioner of the department of public health, the commissioner of the department of mental health, the commissioner of insurance, and the director of Medicaid, or their designees, all of whom shall serve as ex officio members, and 13 persons to be appointed by the governor, 1 of whom shall be a representative from the

Massachusetts Gaming Commission, 1 of whom shall be a representative from the Office of Problem Gambling Services, 1 of whom shall be a representative from the Massachusetts State Lottery, 1 of whom shall be a representative from the Massachusetts Council on Gaming and Health, 1 of whom shall be a representative from the Massachusetts Psychological Association who shall be a psychologist, 1 of whom shall be a representative from the Massachusetts Behavioral Health Partnership or a managed care organization or managed care entity contracting with MassHealth, 3 of whom shall be representatives of the Massachusetts Medical Society, including a family physician and a psychiatrist, 1 of whom shall be a representative from the Massachusetts Association of Health Plans, and 3 of whom shall be representatives from commercial health insurance carriers or managed care organizations doing business in the commonwealth, is hereby established for the purpose of making an investigation and study relative to problem gambling, including, but not limited to (i) an assessment of current research on the subject and whether there exist evidence-based, best or promising practices on the prevention, detection and treatment of problem gambling; (ii) a review of current policies and practices with respect to medical screenings for problem gambling, including the frequency and location of screenings and training of personnel administering the screenings, the availability of reimbursements and issues relative to medical necessity and third-party coverage; (iii) provision of assistance to the department of public health, other state agencies and organizations in the development of professional and public educational materials and programs on problem gambling, in the development of referral lists for problem gambling treatment, building on existing resources and in the designation of authorized validated screening tools; (iv) provision of assistance to the department of public health, other state agencies and organizations relative to applications for federal funding to support efforts consistent with the mission and purpose of the

commission; (v) an analysis of how the coordination of problem gambling efforts can be improved between the department of public health and the Massachusetts Gaming Commission; and (vi) any other matters that the commission considers relevant to the fulfillment of its mission and purpose.

The commission shall provide guidance and advice to the governor, the general court and the secretary of health and human services relative to current research on problem gambling including, but not limited to, best and promising practices in the prevention, detection and treatment of problem gambling and recommended policies, including legislation, to promote greater public awareness, screening and treatment of problem gambling. The special commission may conduct public hearings, forums or meetings to gather information and to raise awareness of problem gambling, including the sponsorship of or participation in statewide or regional conferences.

The commission shall hold its first meeting not later than 30 days after the effective date of this act and shall meet not less frequently than monthly thereafter. The commission shall file an annual report at the end of each state fiscal year with the governor and the clerks of the house of representatives and the senate, who shall forward the same to the joint committee on public health, the joint committee on economic development and emerging technologies, and the house and senate committees on ways and means, along with recommendations, if any, together with drafts of legislation necessary to carry those recommendations into effect. The first such report shall be due not later than June 30, 2028. The special commission may file such interim reports and recommendations as it considers appropriate.